

26STCV10334 26STCV10334

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Case Number: 26STCV10334 Hearing Date: July 15, 2026 Dept: 516

Judge James I. Montgomery

Department 516

Hearing Date: July 15, 2026

Case Name: Daghlia v. Cliffside Malibu,
et al.

Case No.: 26STCV10334 Matter: Motion to Compel Arbitration and Stay Proceedings

Moving

Party: Defendant Discovery

Practice Management Inc.

Responding Party: Plaintiff Sarin Daghlia

Tentative Ruling: Defendant

Discovery Practice Management Inc.'s motion is granted.

Plaintiff Sarin

Daghlia ("Plaintiff") filed this action against Defendants Cliffside Malibu, Discovery Practice Management ("DPM"), Behavioral Health, and Does 1 through 20. The First Amended Complaint ("FAC") seven causes of action for: (1) discrimination in violation of Government Code section 12940 et seq.; (2) retaliation in violation of Government Code section 12940 et seq.; (3) failure to prevent discrimination and retaliation in violation of Government Code section 12940(k); (4) failure to provide reasonable accommodation in

violation of Government Code section 12940 et seq.; (5) failure to engage in good faith interactive process in violation of Government Code section 12940 et seq.; (6) for declaratory relief; and (7) wrongful termination in violation of public policy.

DPM moves

to compel arbitration of Plaintiff's claims pursuant to the arbitration agreement that Plaintiff signed when she completed her onboarding paperwork. Plaintiff opposes.

Legal Standard

Under both

the Federal Arbitration Act and California law, arbitration agreements are valid, irrevocable, and enforceable, except on such grounds that exist at law or equity for voiding a contract. (*Winter v. Window Fashions Professions, Inc.* (2008) 166 Cal.App.4th 943, 947.) Code of Civil Procedure section 1281.2 authorizes the court to order arbitration of a case if it finds the parties agreed to arbitrate that dispute, "and that a party to the agreement refuses to arbitrate that controversy." (Code Civ. Proc., § 1281.2, subd. (a).) Arbitration agreements should be liberally interpreted and ordered unless the agreement clearly does not apply to the dispute in question. (*Weeks v. Crow* (1980) 113 Cal.App.3d 350, 353; *Segal v. Silberstein* (2007) 156 Cal.App.4th 627, 633.)

The party

moving to compel arbitration has the initial burden to (1) affirmatively admit and allege the existence of a written arbitration agreement, and (2) prove the existence of that agreement by a preponderance of the evidence. (*Rosenthal v. Great W. Fin. Sec. Corp.*, 14 Cal. 4th 394, 413 (*Rosenthal*).) Once this is met, the burden shifts to the responding party to prove that the agreement is unenforceable by a preponderance of the evidence. (*Ibid.*)

"Doubts as

to whether an arbitration clause applies to a particular dispute are to be resolved in favor of sending the parties to arbitration. The court should order them to arbitrate unless it is clear that the arbitration clause cannot be interpreted to cover the dispute." (California

Correctional Peace Officers Assn. v. State (2006) 142 Cal.App.4th 198, 205.)

Evidentiary Objections

Plaintiff

makes the five evidentiary objections to Beth Randall's declaration. The Court overrules all five of Plaintiff's evidentiary objections to Beth Randall's declaration.

Plaintiff

makes the nine evidentiary objections to Jesse Rio's declaration. The Court overrules all nine evidentiary objections to Jesse Rio's declaration.

Analysis

DPM moves to compel arbitration of Plaintiff's claims against it and stay the matter pending arbitration.

Federal

Arbitration Agreement

Defendant argues

the Federal Arbitration Act ("FAA") governs the Arbitration Agreement ("Agreement"). The Court agrees. The Agreement expressly states:

This Agreement shall

be enforced under the provisions of the Federal Arbitration Act ("FAA") (9 USC §§ 1, et seq.) and preempts state arbitration statutes, including but not limited to the California Arbitration Act, to the fullest extent permitted by law. Employer and Employee agree that Employer and its relationship with Employee involve and relate to interstate commerce and therefore the FAA applies to and governs this Agreement.

(Randall Decl., Ex. A, ¶ 2.)

Plaintiff does

not dispute the applicability of the FAA.

Thus, the FAA applies.

Existence
of a Valid Agreement

Defendant seeks to compel arbitration based on a 2025 Agreement that Plaintiff executed when she began her employment and completed her onboarding. In support of the existence of the Agreement, Defendant submits as evidence the executed Agreement signed by Plaintiff on October 27, 2025, at 9:19:24 a.m. (Randall Decl., Ex. A.) The Agreement provides that “any and all claims, controversies or disputes (“Disputes”) relating to any aspect of Employee’s employment with Employer” shall be resolved through binding arbitration. (Randall Decl., Ex. A, ¶ 1.) Specifically, the Agreement states that:

1. Final and Binding Arbitration:

Employer and Employee agree that any and all claims, controversies or disputes (“Disputes”) relating to any aspect of Employee’s employment with Employer (pre-hire through post-termination), which Employer may have against Employee, or which Employee may have against Employer or any related entity, owner, partner, officer, director, shareholder, employee, contractor, representative or agent, shall be resolved through final and binding arbitration, except as otherwise provided by law or this Agreement. Employer and Employee acknowledge that they are relinquishing the right to a court trial or jury trial of any Dispute, except as otherwise provided by law or this Agreement. Employee’s continued employment with Employer will constitute assent to this Agreement.

(Ibid.)

Plaintiff does not dispute that she signed the agreement, nor did she submit any evidence to challenge the position that she did not sign the agreement. Plaintiff disputes the admissibility of the evidence regarding Defendant’s burden and that the Agreement does not apply to Plaintiff’s claims because the Ending Forced Arbitration of Sexual Assault and Sexual Harassment Act (“EFAA”) bars arbitration.

At this point in the analysis to establish the existence of an agreement to arbitrate, it is sufficient for the defendants to provide a copy of the arbitration agreement or state the paragraph verbatim. (See Rosenthal, supra, 14 Cal. 4th at p. 413; Cal. Rules of Court, Rule 3.1330.) The court need not make an evidentiary determination of its validity at this stage. (Ruiz v.

Moss Bros. Auto Group, Inc. (2014) 232 Cal.App.4th 836, 846 (Ruiz); Condee v. Longwood Management Corp. (2001) 88 Cal.App.4th 215, 218–219 (Condee.) Here, Defendant has met its burden.

Thus, an Agreement exists between the parties.

Applicability of the Ending Forced Arbitration of Sexual Assault and Sexual Harassment Act

Plaintiff argues that the Agreement does not apply to Plaintiff's claims because her claims are barred from arbitration pursuant to the EFAA.

Under the EFAA, a plaintiff "alleging conduct constituting sexual harassment or a sexual assault dispute" may elect to render invalid and unenforceable an arbitration provision applicable to their case. (9 U.S.C. §402(a).) The EFAA specifically states "at the election of the person alleging conduct constituting a sexual harassment dispute or sexual assault dispute, or the named representative of a class or in a collective action alleging such conduct, no predispute

arbitration agreement or predispute joint-action waiver shall be valid or enforceable with respect to a case which is filed under Federal, Tribal, or State law and relates to the sexual assault dispute or the sexual harassment dispute." (9 U.S.C. §402(a), emphasis added.) A sexual harassment dispute is defined as "relating to conduct that is alleged to constitute sexual harassment under applicable Federal, Tribal, or State law." (9 U.S.C.A. § 401(4).)

Plaintiff argues that "pregnancy discrimination and pregnancy related harassment are forms of sex discrimination and sex-based harassment under California law." (Opp., 2:13-14.) Plaintiff further contends that "[b]ecause Plaintiff's claims arise directly from Defendant's treatment of her after learning she was pregnant, this action falls squarely within the protections of the" EFAA. (Id. at p. 2:14-16.)

Plaintiff cites four cases to support her position, Akers, Johnson, Roby, and Polluck.

However, the Court finds these cases unpersuasive to support her arguments. It is unclear to the Court what Plaintiff's reliance is on Akers and Johnson. In Akers, the Court addressed an adverse employment action, but the question before the Court is whether the EFAA bars Plaintiff's claims from being compelled to arbitration. (Akers v. County of San Diego (2002) 95 Cal.App.4th 1441, 1454.) Likewise, in Johnson, the Court reversed and remanded a motion for summary judgment on the ground that a triable issue of material fact existed as to whether a pregnant employee was discriminated against. (Johnson v. United Cerebral Palsy/Spastic Children's Foundation of Los Angeles and Ventura Counties (2009) 173 Cal.App.4th 740, 766.)

"[D]iscrimination refers to bias in the exercise of official actions on behalf of the employer, and harassment refers to bias that is expressed or communicated through interpersonal relations in the workplace." (Roby v. McKesson Corp. (2009) 47 Cal.4th 686, 707, as modified (Feb. 10, 2010).) ""[H]arassment consists of conduct outside the scope of necessary job performance, conduct presumably engaged in for personal gratification, because of meanness or bigotry, or for other personal motives.... [¶] ... [¶] ... [C]ommonly necessary personnel management actions ... do not come within the meaning of harassment.... These actions may retrospectively be found discriminatory if based on improper motives, but in that event the remedies provided by the FEHA are those for discrimination, not harassment.... This significant distinction underlies the differential treatment of harassment and discrimination in the FEHA.""

(Ibid.) "[A]lthough discrimination and harassment are separate wrongs, they are sometimes closely interrelated, and even overlapping, particularly with regard to proof." (Pollock v. Tri-Modal Distribution Services, Inc. (2021) 11 Cal.5th 918, 932.)

While Plaintiff is correct that in some situations there is an overlap between harassment and discrimination, there is no evidence before the Court that supports that Plaintiff's discrimination claims are interrelated with sexual harassment claims. Plaintiff is requesting that the Court expand the applicability of EFAA without any basis to do so.

In reply, DPM argues that Doe and Casey do not support Plaintiff's arguments. (Reply, 3:3-17.) The Court notes that Plaintiff did not cite to these cases. So, it is unclear why DPM

disputes these cases.

Moreover, in looking at Plaintiff's

FAC, she does not allege sexual harassment claims or any facts to support her claims that the EFFA is applicable. The Court notes that Plaintiff filed an FAC to include the word "gender" in her allegations. The Complaint alleges:

65. Plaintiff contends that her termination was a pretext for discrimination and retaliation based on perceived and/or actual disability, medical condition. Plaintiff had consistently provided updated doctor's notes regarding her disability and ongoing medical care and was terminated right after sending in a doctor's note.

(Compl., ¶ 65
(emphasis added).)

While the FAC
alleges,

63. Plaintiff contends that her termination was a pretext for discrimination and retaliation based on perceived and/or actual disability, medical condition, pregnancy, gender, and/or future need for medical leave and childbirth. Plaintiff had consistently provided updated doctor's notes regarding her disability and ongoing medical care and was terminated right after sending in a doctor's note.

(FAC, ¶ 63
(emphasis added).)

Throughout the FAC, the allegations made are about the "discrimination" and "retaliation" Plaintiff endured due to her medical condition—the complications she experienced with her pregnancy. (FAC, ¶¶ 64-66, 71, 78-79, 82, 92, 101, 109, 130, 141.) Plaintiff does not make any allegations regarding sexual abuse or harassment.

Thus, the EFFA does not bar
arbitration of Plaintiff's claims.

Authenticity of Plaintiff's Signature

“Once the petitioners had alleged that the agreement exists, the burden shifted to respondents to prove the falsity of the purported agreement.” (Condee, supra, 88 Cal.App.4th at p. 219.) “[T]he burden shifts to the party opposing arbitration to identify a factual dispute as to the agreement's existence—in this instance, by disputing the authenticity of their signatures. To bear this burden, the arbitration opponent must offer admissible evidence creating a factual dispute as to the authenticity of their signatures. The opponent need not prove that his or her purported signature is not authentic, but must submit sufficient evidence to create a factual dispute and shift the burden back to the arbitration proponent, who retains the ultimate burden of proving, by a preponderance of the evidence, the authenticity of the signature.” (Iyere v. Wise Auto Group (2023) 87 Cal.App.5th 747, 755 (Iyere).)

Plaintiff's

contention is that she was unaware of any arbitration agreement and does not remember signing the Agreement. (Daghlian Decl., ¶¶ 3-4.) Plaintiff does not deny signing the Agreement, only that she does not recall reviewing it. (Id. at ¶¶ 4-8.) This is not enough to contend that she did not sign the Agreement. The facts of this case are analogous to Iyere. In Iyere, an employee did not state that he “had not signed the agreement, or that his physical signature was forged or inauthentic.” (Iyere, supra, 87 Cal.App.5th at p. 756.) Each employee also claimed, “I do not recall ever reading or signing any document entitled Binding Arbitration Agreement I do not know how my signature was placed on [the document].” Each plaintiff stated further that if he had understood that the agreement waived his right to sue [employer], he would not have signed it.” (Ibid.) The court held that the employees did not create a factual dispute. (Ibid.) Here, Plaintiff makes the same claims in her declaration; thus, she does not meet her burden.

Even

assuming the burden is shifted back to DPM, it fulfills its burden to prove the existence of the agreement and authenticate Plaintiff's signature. Plaintiff argues that the declarations do not authenticate her signature on the Agreement. The Court finds that the case law opposes her claim.

“Civil Code

section 1633.9 addresses how a proponent of an electronic signature may authenticate the signature—that is, show the signature is, in fact, the

signature of the person the proponent claims it is. The statute states: ‘(a) An electronic record or electronic signature is attributable to a person if it was the act of the person. The act of the person may be shown in any manner, including a showing of the efficacy of any security procedure applied to determine the person to which the electronic record or electronic signature was attributable.’” (Espejo, supra, 246 Cal.App.4th at p. 1061.)

In Ruiz,

the Court held that the employer did not authenticate the employee’s signature on the following grounds:

[The business manager] did not explain that an electronic signature in the name of “Ernesto Zamora Ruiz” could only have been placed on the 2011 agreement (i.e., on the employee acknowledgement form) by a person using Ruiz’s “unique login ID and password”; that the date and time printed next to the electronic signature indicated the date and time the electronic signature was made; that all . . . employees were required to use their unique login ID and password when they logged into the HR system and signed electronic forms and agreements; and the electronic signature on the 2011 agreement was, therefore, apparently made by Ruiz on September 21, 2011, at 11:47 a.m. Rather than offer this or any other explanation of how she inferred the electronic signature on the 2011 agreement was the act of Ruiz, [the business manager] only offered her unsupported assertion that Ruiz was the person who electronically signed the 2011 agreement. In the face of Ruiz’s failure to recall electronically signing the 2011 agreement, the fact the 2011 agreement had an electronic signature on it in the name of Ruiz, and a date and time stamp for the signature, was insufficient to support a finding that the electronic signature was, in fact, “the act of” Ruiz. (Civ. Code, § 1633.9, subd. (a).) For the same reason, the evidence was insufficient to support a finding that the electronic signature was what [employer] claimed it was: the electronic signature of Ruiz. (Evid. Code, § 1400, item (a).)

(Ruiz, supra, 232 Cal.App.4th at p. 844.)

While in Espejo,

the employer’s systems consultant detailed the employer’s security precautions regarding the transmission and use of an applicant’s unique username and password and the steps an applicant takes to sign the document, and then, based on those procedures, she concluded that the employee signed the arbitration

agreement. (Espejo, supra, 246 Cal.App.4th at p. 1062.)

Espejo is

on point with the facts of this case. Beth Randall (“Randall”) is the “Director of Employee Experience & Engagement at DPM for the last eleven years, including throughout Plaintiff’s employment with DPM; one of my responsibilities is to implement and issue the Arbitration Agreement that Plaintiff signed.” (Randall Decl., ¶ 3.) Randall explained the procedures DPM executes when onboarding new employees. (Id. at p. ¶ 4.) While the declaration of Jesse Rios (“Rios”), who is the Director of Human Resources Operations for Defendant Discovery Practice Management, Inc., provides insight into the steps the employee takes to sign the arbitration agreement. (Rios Decl., ¶¶ 3-6.) Rios further declares that Plaintiff signed the Agreement “given this process for signing documents and protecting the privacy of the information with unique employee emails, passwords, and two-factor authentication, the electronic signature and name on Plaintiff’s Arbitration Agreement could have only been placed on the signature page of the Arbitration Agreement by someone using Plaintiff’s unique employee email and password, and with access to Plaintiff’s cellular phone, and the date and time placed on the Arbitration Agreement is the date and time the signature was made by Plaintiff.” (Rios Decl., ¶ 8.) The exhibit attached to Rios’s declaration shows that Plaintiff viewed the Agreement at 9:18:32 a.m. on October 27, 2025, and signed it that same day at 9:19:24 a.m. through DocuSign. (Rios Decl., Ex. 6.)

Thus, DPM properly authenticated Plaintiff’s signature.

Delegation Clause

“Parties to an arbitration agreement may agree to delegate to the arbitrator, instead of a court, questions regarding the enforceability of the agreement. ([Citation.]) They “can agree to arbitrate almost any dispute—even a dispute over whether the underlying dispute is subject to arbitration.”” (Tiri v. Lucky Chances, Inc. (2014) 226 Cal.App.4th 231, 241(citations omitted).) There are two prerequisites for a delegation clause to be effective. First, the language of the clause must be clear and unmistakable. ([Citation.]) Second, the delegation must not be revocable under state contract defenses such as fraud, duress, or unconscionability. (Id. at p. 242.)

Here, the Agreement is clear and unmistakable that the parties agreed to delegate arbitrability to the arbitrator. The Agreement states:

10. Enforceability of this Agreement: Unless otherwise provided by law, in the event of a dispute related to the validity, enforceability, formation or interpretation of this Agreement, in whole or in part, the arbitrator shall have the sole and exclusive authority to consider and resolve the dispute. This includes, but is not limited to, a claim that all or any portion of this Agreement is void, voidable or otherwise unenforceable based on unconscionability or any other basis. If any provision of this Agreement is determined to be void, voidable or unenforceable, in whole or in part, that portion of the provision may be severed, and the remainder of the provision and this Agreement shall remain in full force and effect

(Randall Decl., Ex. A, ¶ 10 (emphasis added).)

Plaintiff contends that the delegation provision is unconscionable because “such a clause presumes that the parties are bound by the arbitration clause, although that is the very issue that has yet to be decided.” (Opp., 16:17-20.) Plaintiff cites to Bruni, but provides no argument as to how the delegation clause in the Agreement is unconscionable. Plaintiff makes no argument that it is. Moreover, in Bruni, the court determined that the court needs to look at the nature of the parties claim whether the party opposing arbitration claims forgery, fraud, illegality, or fraud in the inducement. (See Bruni v. Didion (2008), 160 Cal. App. 4th 1272, 1287.) Here, Plaintiff did not make such argument.

Thus, the delegation clause is enforceable, and an arbitrator, not the Court, is to decide “the validity, enforceability, formation or interpretation of this Agreement.” (Randall Decl., Ex. A, ¶ 10 .) The Court will not address Plaintiff’s remaining arguments.

Stay of Proceedings

Code of Civil Procedure section 1281.4 provides that if the court has ordered the arbitration of a controversy, it “shall, upon motion of a party to such action or proceeding, stay the action

or proceeding until an arbitration is had in accordance with the order to arbitrate or until such earlier time as the court specifies.” (Code Civ. Proc., § 1281.4.)

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Thus, the Court stays this action pending the conclusion of the arbitration proceedings. ٤٤

Conclusion

Defendant

Discovery Practice Management Inc.'s motion to compel arbitration is granted.

The Court stays this action pending the conclusion of the arbitration process.